

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SNAP-TEX NORTHWEST, INC., *Claimant*

v.

COSCO SHIPPING LINES (NORTH AMERICA), *Respondent*.

DOCKET NO. 2035(I)

Served: February 11, 2026

BEFORE: Jamie Mendelson, *Small Claims Officer*.

ORDER GRANTING VOLUNTARY DISMISSAL¹

On July 16, 2025, the Secretary of the Federal Maritime Commission (“Commission”) issued a Notice of Filing of Small Claims Complaint and Assignment, stating that Claimant Snap-Tex Northwest had filed an informal complaint against Respondent COSCO Shipping Lines (North America). Claimant alleges that Respondent stalled the resolution of Claimant’s claim for damage to the product shipped, in violation of 46 U.S.C. § 41104(a)(4)(E).

Respondent filed a response to the claim on August 11, 2025. On August 13, 2025, the matter was assigned to a Small Claims Officer. On February 5, 2026, the Chief Administrative Law Judge issued a Notice reassigning the matter to the undersigned to serve as the Small Claims Officer. On that same date, Claimant sent an email to the Commission asking that the case be closed because Claimant is “voluntarily withdrawing” the claim. In the email, Claimant explains: “After further review, we have elected not to pursue this claim and respectfully request that the Federal Maritime Commission close the case accordingly. No further action by the Small Claims Officer is requested.”

The Commission’s Rule 72(a)(3) provides that “an action may be dismissed at the complainant’s request only by order of the presiding officer, on terms the presiding officer considers proper.” 46 C.F.R. § 502.72(a)(3). Although Rule 72—governing dismissals in Commission proceedings—is not applicable to small claims (Subpart S) proceedings, *see* 46 C.F.R. § 502.305(a) and (b), it is nonetheless instructive in ruling on Claimant’s request to voluntarily withdraw the claim.

¹ Pursuant to 46 C.F.R. § 502.304(g), this decision will become final unless the Commission elects to review it within 30 days of service.

The information submitted by Claimant does not indicate that the parties entered into any settlement agreement. Moreover, there is no indication that Claimant's request to voluntarily withdraw the claim is a product of any fraud, duress, undue influence, or mistake.

Accordingly, for the reasons discussed above, Claimant's request to voluntarily withdraw the claim is granted and this proceeding is **DISMISSED WITHOUT PREJUDICE**.

Jamie L. Mendelson Digitally signed by
-S Jamie L. Mendelson -S

Jamie Mendelson
Small Claims Officer